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Case Number: 26STCP00859 Hearing Date: August 27, 2026 Dept: 529

INVESTOR PARTNERS INC. VS LILIANA RUTH NAVA-CEJUDO

MOTION TO COMPEL ARBITRATION AND APPOINT ARBITRATOR

Date of Hearing: August 27, 2026 Trial Date: None set

Department: 529 Case No.: 26STCP00859

Moving Party: Petitioner Investor Partners, Inc. dba Bruce Jay Associates

Responding Party: Respondent Liliana Ruth Nava-Cejudo

BACKGROUND

On March 3, 2026, Petitioner Investor Partners, Inc. dba Bruce Jay Associates filed a verified petition to compel arbitration against Liliana Ruth Nava-Cejudo.

[TENTATIVE] RULING

Petitioner Investor Partners, Inc. dba Bruce Jay Associates's Motion to Compel Arbitration and Appoint Arbitrator is CONTINUED.

DISCUSSION

Petitioner Investor Partners, Inc. dba Bruce Jay Associates moved for an order to compel arbitration and appoint arbitrator on the grounds the parties entered into a Business Listing Agreement, which included an agreement to arbitrate all disputes arising out of the Agreement.

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute.¿ (CCP §1281.2;

Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) Because the right to arbitration depends upon contract, the party seeking arbitration bears the initial burden of proving that the parties actually agreed to arbitrate the instant dispute. (Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 761.) If the moving party does so, the burden shifts to the opposing party to show that the subject agreement is unenforceable. (Id. at 761.) The court “sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 972.)

Bruce Jay Associates seeks to move this action to arbitration and for the court to appoint an arbitrator on the grounds there is an existing agreement to arbitrate disputes arising out of the agreement.

In opposition, Respondent does not dispute the existence of the arbitration agreement. Rather, Respondent argues there is substantial grounds for finding the arbitration provision unenforceable under unconscionability. Specifically, Respondent contends the arbitration provision is unconscionable because 10% commission of the listing price and the arbitration provision was not separately negotiated from the agreement.

The court finds the arbitration provision is not unconscionable and therefore, enforceable. First, challenging the contract as a whole does not defeat the arbitration clause. The arbitration clause must be independently evaluated under the two-prong test requiring both procedural and substantive unconscionability. Moreover, the lack of separate negotiation of an arbitration provision from the whole contract does not automatically make the arbitration unconscionable. Courts have consistently held that the adhesive nature and lack of negotiation establishes only minimal procedural unconscionability. (See Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 911; Roman v. Superior Court (2009) 172 Cal.App.4th 1462, 1471.) In order to establish unconscionability, both procedural and substantive unconscionability must be present.

Based on the foregoing, the motion to compel arbitration is GRANTED.

As for Petitioner’s request for the court to appoint an arbitrator, the court notes Petitioner requests 3 qualified arbitrators: Eric S. Oto, Leslie Marks or Marc Alexander. Code of Civil Procedure section 1281.6 requires that the parties jointly supply a list of potential arbitrators to the court. From this list, the court will nominate five persons. If the parties do not agree on a person from this list within five-days, the Court will appoint an arbitrator from the nominees.

As such, the court continues the matter so the parties may comply with Section 1281.6.